

filed a “Probate Uncontested Ex Parte Coversheet: Matters Submitted on the Pleadings” stating that the only interested person was Former Conservatee. (See Probate Ex Parte Coversheet filed November 9, 2023 in docket 2005-1-PR-157452, p. 2 of 4.) Ladd also represented that Petitioners had not sought attachment of the funds in the blocked account. (See, e.g. August 29, 2023 Ex Parte Application in docket 2005-1-PR-157452, ¶ 8.) A proof of service for the August 29, 2023 Ex Parte Application, also filed August 29, 2023, reveals that Petitioners were not served with the Ex Parte Application.³ On November 9, 2023, Ladd again filed an ex parte application for an order shortening time to hear her motion to release funds from the blocked account. The motion itself was filed November 16, 2023. No proof of service was attached or filed concurrently with the November 9, 2023 ex parte application or the November 16, 2023 motion. On December 11, 2023, the court heard the matter and granted the request to remove the \$218,809.78 from the blocked account. Neither Petitioners nor their counsel were present. (See Minute Order filed December 11, 2023 in docket 2005-1-PR-157452.) Petitioners contend that they were not served with these filings and, instead, were informed for the first time of these proceedings when U.S. Bank filed a “Status of Account Funds” in the civil action on February 26, 2024. (See Petition, p. 5:12-15; Non-Party U.S. Bank National Association Status of Account Funds, filed in docket 20CV367561 on February 26, 2024.)

The August 29, 2023 ex parte application indicated that the court (Hon. Lori Pegg) had previously found that the funds in the blocked account were conservatorship funds. As mentioned above, on December 23, 2021, the court issued an order that the proceeds of the sale of the Browns Lane property would be placed in a blocked account. That order also stated, “While title to the properties are held in the names of Michael Kowitz, Trustee of the Kowitz Family Trust-I and ZDE Holdings, Inc., these properties are assets of the Conservatorship of Michael Kowitz, Patricia Ladd, as Conservator of Michael Kowitz, is therefore, being granted the authority to sell these properties to preserve the Assets for the conservatorship estate.”⁴ (December 23, 2021 Order in docket 2005-1-PR-157452, p. 2:17-22.) Nonetheless, the issue of ownership of the Browns Lane property was submitted to the jury and it was ultimately determined that the funds in the blocked account belonged to Petitioners. (See Judgment on Jury Verdict filed in docket 20CV367561 on December 14, 2023, ¶ 50 [“Do you award the sales proceeds held in the blocked account from the sale of 14341 Browns Lane, Los Gatos, California to Plaintiffs? Yes. Do you award the sales proceeds held in the blocked account from the sale of 14331 Browns Lane, Los Gatos, California to Plaintiffs? Yes.”].) Accordingly, the court finds that Ladd should not have removed the funds from the blocked account to pay for attorney fees related to the conservatorship.

The petition is DENIED to the extent it seeks an order to show cause re contempt. Initiating contempt proceedings requires an affidavit charging the facts constituting contempt. (Code Civ. Proc., § 1211, subd. (a) [“When the contempt is not committed in the immediate view and presence of the court, or of the judge at chambers, an affidavit shall be presented to the court or judge of the facts constituting the contempt, or a statement of the facts by the

³ An attorney filed the August 29, 2023 Ex Parte Application but that attorney moved to withdraw on October 11, 2023.

⁴ ZDE Holdings is one of the entities that Petitioners contended Former Conservatee alleged would hold title to the Browns Lane property while Former Conservatee, in fact, fraudulently held the Browns Lane property out to be his own. (See TAC in docket 20CV367561, ¶¶ 11-13.)

referees or arbitrators, or other judicial officers.”].) Here, although Petitioners provide the declaration of their counsel in support of the petition, it does not meet these requirements. Accordingly, the request for an order to show cause re: contempt is DENIED.

CONCLUSION

The petition is GRANTED IN PART. Patricia Ladd is ordered to return \$253,780.31 to Petitioners’ counsel within 30 days of the date of the court’s final order on this matter. The petition is DENIED IN PART as to the request for an order to show cause re: contempt.